



January 2, 2024

Senator Nicholas P. Scutari
New Jersey Senate President
67 Walnut Ave.
Clark, NJ 07066

Assemblyman Craig J. Coughlin
New Jersey Assembly Speaker
569 Rahway Ave.
Woodbridge, NJ 07095

CC: Assemblyman Raj Mukherji
Assemblyman Daniel R. Benson
Assemblyman Paul D. Moriarty
Senator Troy Singleton
Senator Richard J. Codey

RE: Letter in Opposition to New Jersey A1971 and S332

Dear Senate President Scutari and Assembly Speaker Coughlin:

On behalf of the advertising industry, we write to oppose New Jersey A1971 and S332. The bills will have significant impacts on both New Jersey consumers and the economy and should be held so that the New Jersey Legislature has time to sufficiently consider the bills through the normal legislative process.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, long-standing and emerging publishers, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product ("GDP") in 2020.¹ By one estimate, over 240,000 jobs in New Jersey are related to the ad-subsidized Internet.² We would welcome the opportunity to engage with you further on the benefits of data-driven digital advertising and the issues with the bills we outline here.

While we and the companies we represent believe consumers deserve meaningful privacy protections supported by reasonable laws and responsible industry practices, such protections should not be rushed through the legislative process without providing adequate time to robustly consider their impacts on New Jersey consumers, small businesses, and the economy at large. A1971 and S332 propose novel privacy standards that should be carefully considered through a robust legislative process. Over the last two holiday weeks, the legislature has considered and advanced several substantive amendments to the bills that diverge from the majority of other states that have passed consumer data privacy legislation. If enacted, the out-of-step provisions under A1971 and S332 would hinder consumers' ability to access online content and resources to the detriment of New Jerseyans and local businesses alike. Moreover, the State Assembly is scheduled to adjourn in mere days. The remaining time in this session simply does not provide

¹ John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located [here](#) (hereinafter, "Deighton & Kornfeld 2021").

² *Id.* at 129-30.

legislators, affected stakeholders, or consumers adequate time to carefully review the bills and the proposed amendments thereto to ensure the State Assembly advances practical and workable privacy protections for New Jerseyans.

More time is needed to refine A1971 and S332, bills that would have wide-reaching impacts on both commerce and New Jersey consumers. The New Jersey State Assembly should not rush the bills through the legislative process in the waning days of the legislative session, and instead should take up these efforts again in the new session when legislators have time to sufficiently consider the costs of the bills' unique provisions. An overly hasty legislative process without time to seek input from affected stakeholders on the new amendments is likely to result in avoidable inconsistencies and unnecessary regulatory ambiguity. When legislation is likely to significantly impact both a large volume of consumers and a great portion of the economy, it is vitally important that the rigorous vetting that occurs during the regular legislative process is not overpowered by calls to hastily pass important protections right away.

For these reasons, we respectfully ask you to hold A1971 and S332 so that they may be considered fully during the next legislative session. Thank you in advance for your consideration of this letter.

* * *

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-269-1883

Alison Pepper
EVP, Government Relations & Sustainability
American Association of Advertising Agencies, 4A's
202-355-4564

Lartease Tiffith
Executive Vice President, Public Policy
Interactive Advertising Bureau
212-380-4700

Clark Rector
Executive VP-Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria, CIPP, CISSP
Executive Director
Digital Advertising Alliance
347-770-0322

CC: Mike Signorelli, Venable LLP
Allie Monticollo, Venable LLP
Katelyn Asmus, Venable LLP